

TENTATIVE RULING FOR JUNE 1, 2026

Department R12 - Judge Kory Mathewson

Christopher Reilly v. K. Garcia Payton, et al. – CIVSB2309097

Motion: Motion to Strike Portions of Plaintiff's First Amended Complaint
Movant: Defendants San Bernardino County, San Bernardino County Sheriff's
Department, and K. Garcia-Peyton
Respondent: Plaintiff Christopher Reilly
RULING: Motion to Strike Portions of Plaintiff's First Amended Complaint is
DENIED.

Plaintiff - to provide Order(s) and give Notice.

Before the Court is Defendants' motion to strike portions of paragraphs 32 and 33 of the FAC's negligence cause of action, specifically language alleging that "Defendants, including Defendant Payton and individual employees of Defendant County and Defendant Sheriff's Department, who were responsible for hiring and supervising defendants['] deputies negligently hired, trained, supervised, employed and/or managed Defendants' deputies."

The Court finds a sufficient meet and confer occurred. (Clark Decl. ¶¶ 5-8, Exhs. A-D.)

Timeliness

The motion was filed after Defendants answered the FAC and after an earlier motion to strike, however Plaintiff does not object to the motion as untimely or show prejudice from the timing. Because Code of Civil Procedure section 436 permits the Court to strike improper matter "at any time," the Court may reach the merits and does so here.

Analysis

A public entity is not directly liable for common-law negligence unless liability is created by statute. (Gov. Code, § 815, subd. (a).) Government Code section 815.2, however, permits public-entity vicarious liability for acts or omissions of public employees within the scope of employment. (Gov. Code, § 815.2, subd. (a).) Therefore, Plaintiff may not proceed on a theory that the County or Sheriff's Department directly owed and breached a common-law duty to hire, train, supervise, employ, or manage deputies, but Plaintiff may proceed on a theory that individual public employees negligently performed hiring, training, supervision, or management functions, and that the public entities are vicariously liable for those employees' negligence.

The problem with Defendants' motion is that the challenged language is not as clear as Defendants suggest. Paragraph 32 does not simply allege "the County negligently hired, trained, and supervised deputies." Instead, it alleges that "Defendants, including Defendant Payton and individual employees of Defendant County and Defendant Sheriff's Department, who were responsible for hiring and supervising defendants deputies negligently hired, trained, supervised, employed and/or managed Defendants..." Paragraph 33 uses similar language and alleges that "Defendants, including Defendant Payton and individual employees of Defendant County and Defendant Sheriff's Department, who were responsible for hiring and supervising defendants deputies," had the means and ability to properly train officers but failed to exercise reasonable care in training and supervision.

Those allegations reference individual employees of the public entities who allegedly were responsible for hiring and supervising deputies. That language can reasonably be construed as alleging employee negligence, not solely direct entity negligence. Plaintiff's opposition confirms that this is the theory Plaintiff intends to pursue: vicarious liability under Government Code sections 815.2 and 820 for employee negligence, including negligent training and supervision.

Accordingly, because the challenged allegations are not clearly improper and can reasonably be construed as supporting a permissible vicarious-liability theory under Government Code section 815.2, the motion to strike is denied.

Dated: June 1, 2026

Judge Kory Mathewson